

10	30-2024-01439280 Espina vs. J & E Hospitality Group Inc.	Counsel Jorge Ledezma of Ledezma Law, APLC's ("Counsel") Motion to Be Relieved as Counsel for Defendant J&E Hospitality Group, Inc. ("J&E"), Counsel's Motion to Be Relieved as Counsel for Defendant Taste Mexico Hospitality, Inc. ("Taste"), Counsel's Motion to Be Relieved as Counsel for Defendant Sol Agave Group, Inc. ("Sol Agave"), Counsel's Motion to Be Relieved as Counsel for Defendant Prime Hospitality Group, Inc. ("Prime"), and Counsel's Motion to Be Relieved as Counsel for Defendant Rafael Dominguez Lopez ("Lopez") are GRANTED. (CCP § 284(2).) Counsel has complied with the requirements of CRC Rule 3.1362. The Court shall sign and enter the [Proposed] Order, but with a revision to Paragraph 7(a)-(b) to state that the next scheduled hearing is set for 8/31/2026 at 1:30 PM in Department CX103 for a Status Conference and Motion to Be Relieved as Counsel of Record. IT IS ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel remains counsel for each Defendant until Proof of Service upon that Defendant is filed. The court hereby sets an Order to Show Cause why J&E, Taste, Sol Agave, and Prime's Answer should not be stricken due to the fact that each of these defendants are corporations but does not have an attorney of record. (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal. App. 4th 1141, 1150 ["[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time."].) The hearing is set for October 20, 2026 at 9:00 a.m. Counsel is ordered to give notice of the ruling.
11	30-2025-01495811 Frye vs. Rancho Silverado Stables, LLC	Defendants Rancho Silverado Stables, LLC, Heather Perkins, Fawn Rinalduzzi, Eardog Productions LLC, Kimberly M. Wang; Argaux LLC, and Argaux & Amliere LLC's (collectively, "Defendants") Demurrer to Plaintiff Steve Frye's ("Plaintiff") First Amended Complaint ("FAC") is OVERRULED IN PART AND SUSTAINED WITH LEAVE TO AMEND IN PART. IT IS ORDERED THAT Plaintiff shall file an amended complaint within twenty (20) days of this ruling. The court GRANTS Defendants' requests for judicial notice of Exhibits B-G (other complaints purportedly filed by Plaintiff, for which the court only takes judicial notice of their existence), and Exhibits J-L (a Presidential Proclamation, federal statute, and a

	resolution of the California Legislature). (Cal. Evid. Code §§ 452(a), (d).) The court DENIES Defendants’ request for judicial notice of Exhibit A (a list of cases involving plaintiffs with the name “Steve Frye”) and Exhibits H-I (pages from the U.S. Polo Association’s website) as these are not the proper subject for judicial notice. This action arises from Plaintiff’s claim that he (an adult male) was discriminated against on the basis of sex in violation of the Unruh Civil Rights Act (“UCRA”) by Defendants by being precluded from participating in female-only “Ladies Night” events at the Orange County Polo Club on July 20, 2023, July 25, 2024, and July 17, 2025. Plaintiff alleges that he contacted Defendants about one of the Ladies Night events and was told that Defendants were “trying to keep this event all ladies,” and then after Plaintiff purchased a ticket to one of the events, Plaintiff was denied entry and given a refund for his ticket. The Unruh Civil Rights Act (“UCRA”) states that “[a]ll persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” (Cal. Civ. Code § 51(b).) “No business establishment of any kind whatsoever shall discriminate against, boycott or blacklist, or refuse to buy from, contract with, sell to, or trade with any person in this state on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51, or of the person's partners, members, stockholders, directors, officers, managers, superintendents, agents, employees, business associates, suppliers, or customers, because the person is perceived to have one or more of those characteristics, or because the person is associated with a person who has, or is perceived to have, any of those characteristics.” (Cal. Civ. Code § 51.5(a).) The UCRA “must be construed liberally in order to carry out its purpose.” (<i>Angelucci v. Century Supper Club</i> (2007) 41 Cal. 4th 160, 167.) “The Act expresses a state and national policy against discrimination on arbitrary grounds.” (<i>Id.</i>) “Its provisions were intended as an active measure that would create and preserve a nondiscriminatory environment in California business establishments by ‘banishing’ or ‘eradicating’ arbitrary, invidious
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		discrimination by such establishments.” (<i>Id.</i>) First, Defendants demur to both causes of action under the UCRA on the ground that the First Amended Complaint (“FAC”) fails as to either claim because Plaintiff’s deliberately manufactured injury precludes relief. Defendants provide copies of other complaints filed by Plaintiff to argue that he is a serial plaintiff who manufactures UCRA claims. (Defs.’ RJN, Exs. B-G.) Here, Defendants rely solely on one appellate court opinion concerning a summary judgment motion—not a demurrer—involving a plaintiff who brought a manufactured UCRA claim. The appellate court stated that “it is imperative we not denigrate [the UCRA’s] power and efficacy by applying it to manufactured injuries[.]” (<i>Cohn v. Corinthian Colleges, Inc.</i> (2008) 169 Cal. App. 4th 523, 526 [affirming trial court’s grant of summary judgment against plaintiff on UCRA claim based on Angels Baseball LP’s Mother’s Day tote bag giveaway].) In <i>Cohn</i>, “Cohn and two friends went to the game, requested tote bags, were refused twice and left shortly thereafter.” (<i>Id.</i>) “Cohn’s counsel sent a complaint to the Angels bemoaning the fact Cohn did not receive a tote bag, and the Angels responded by sending four tote bags, one for Cohn, his counsel, and his friends.” (<i>Id.</i>) The court determined that “Cohn’s complaint only came after he went to the game to deliberately generate his ‘injury.’” (<i>Id.</i> at 529.) The court noted that “Cohn’s complaint gathers further suspicion because Cohn, his friends, and his counsel have been involved in numerous of what have been characterized as ‘shake down’ lawsuits.” (<i>Id.</i>) The court explained “[t]he Unruh Act is a valuable tool for protecting our citizens and remedying true injuries.” (<i>Id.</i>) The court held that in light of the manufactured nature of the plaintiff’s claim, it was “not convinced the Angels’ tote bag giveaway was in anyway unreasonable, arbitrary, or invidious discrimination,” especially as no other fans complained about the giveaway. (<i>Id.</i>) Thus, the appellate court’s discussion of the manufactured nature of the claim was heavily fact-dependent. More importantly, the manufactured claim was only relevant to whether plaintiff could establish an unreasonable, arbitrary or invidious discrimination. The <i>Cohn</i> court did not establish any bright line rule barring UCRA claims that are manufactured. Instead, the <i>Cohn</i> court affirmed summary judgment because there was insufficient evidence that the giveaway at issue constituted the kind of discriminatory conduct that is subject to the UCRA. The court stated that “the Angels’ intent was to honor mothers on Mother’s Day,” but “[d]ue to the volume of attendees
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	and time pressure, it would be impracticable for the Angels to make sure each woman who received a tote bag was in fact a mother.” (<i>Cohn</i>, 169 Cal. App. 4th at 528.) “Instead, the Angels adopted a practical approach of giving tote bags to all females over 18 years old.” (<i>Id.</i>) “Thus, the intended discrimination is not female versus male, but rather mothers versus the rest of the population.” (<i>Id.</i>) The court stated that “[n]owhere in the Unruh Act is there any mention of requiring the treatment of mothers to be exactly the same as that of non-mothers.” (<i>Id.</i>) “[U]nreasonable, arbitrary, or invidious gender discrimination is present where the policy or action ‘emphasizes irrelevant differences between men and women’ or perpetuates any irrational stereotypes.” (<i>Id.</i>) The court concluded that “[t]he tote bag giveaway honors mothers as a group of individuals without promoting any irrational stereotypes, and therefore does not violate the Unruh Act.” (<i>Id.</i> at 528-529.) Further, the court noted that unlike gender-based discounts, “[t]he tote bag simply represented a gift and did not discount the admission price.” (<i>Id.</i> at 530.) “If the intent is for the item to be a gift, rather than an attempt to circumvent the ban on gender based discounts, then such a gift is permissible.” (<i>Id.</i>) Accordingly, there is no legal basis for Defendants’ first ground for demurrer. Further, to the extent Defendants argue that Plaintiff’s claim is manufactured, that is a factual issue outside the scope of the pleadings. The court overrules the demurrer on this first ground. Second, Defendants demur to both causes of action on the ground that the FAC fails to state either claim because it does not allege arbitrary, unreasonable, or invidious discrimination. Defendants argue that the subject events were designed to introduce women to polo and encourage women to participate in the sport, which Defendants contend are compelling societal interests. In opposition, Plaintiff argues that any discrimination based on sex is per se unlawful under the UCRA regardless of intent, citing to <i>C.R. Dep’t v. Cathy’s Creations, Inc.</i> (2025) 109 Cal. App. 5th 204, 227. However, that court explained that while “[g]enerally, policies that make a facial distinction based on an enumerated protected characteristic have been held to be unlawful as arbitrary, invidious or unreasonable discrimination,” “[s]trong public policy based on a compelling societal interest, typically evidenced by statutory enactments, may support as reasonable (and thus not arbitrary) an otherwise prohibited discriminatory distinction[.]” (<i>Id.</i>) Thus, while the <i>C.R. Dep’t</i> court did not find
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	the defendant’s religious beliefs relevant to the question of intentionality, the court did not hold that all facially discriminatory policies on the basis of a protected class are per se illegal under the UCRA as Plaintiff contends. (<i>Id.</i> at 232.) Nevertheless, Defendants’ claimed compelling social interests are outside the scope of the FAC and are not the proper basis for sustaining a demurrer. Here, Plaintiff alleges in the FAC that “Defendants’ denial and/or exclusion of Plaintiff and other non-female persons from the Subject Events did not serve any important public policy or societal interest, and instead constituted intentional, arbitrary, unreasonable, malicious, and/or invidious discrimination in violation of Civil Code §§ 51 and 51.5.” (FAC ¶ 47.) Plaintiff alleges that “Defendants’ exclusion of non-female persons from the “Ladies’ Night” events was merely a business practice of pandering to an identified market segment, i.e., females, for the benefit of Defendants’ economic self-interest[.]” (<i>Id.</i> ¶ 48.) Plaintiff goes on to allege that polo is a co-ed sport, and argues that even if there were only female players competing in any event day, there is no rational basis for excluding non-female spectators. (FAC ¶¶ 49-50.) Further, whether Defendants’ policy actually promotes a compelling societal interest is a factual issue also outside the scope of the FAC. A compelling societal interest is “simply a way of stating that the justification tendered for the disparate treatment would have to be of sufficient societal benefit to render the disparate treatment reasonable and not arbitrary.” (<i>Javorsky v. W. Athletic Clubs, Inc.</i> (2015) 242 Cal. App. 4th 1386, 1397.) “The phrase does not necessarily mandate an extraordinarily high or laudable justification in every conceivable case under the Act, but merely one that is sufficient given the nature of the <i>particular</i> disparate treatment at issue and other attendant circumstances.” (<i>Id.</i> [emphasis in original].) The court noted as an example that a “discount for children and seniors did not violate the Act: the discount was designed to promote the family-oriented nature of the business; it benefited disadvantaged groups (since seniors and children have less disposable income); public policy encouraged the availability of societal benefits to children and the elderly; and statutes in other contexts were designed to assist children and the elderly.” (<i>Id.</i> at 1398.) “[A] policy treating age groups differently . . . may be upheld, at least if the pricing policy (1) ostensibly provides a social benefit to the recipient group; (2) the recipient group is disadvantaged economically when compared to other groups paying full price; and (3) there is no invidious discrimination.” (<i>Id.</i> at 1399.) Accordingly, the question of
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	whether the subject conduct is reasonable and justified is heavily fact-dependent. In <i>Koire v. Metro Car Wash</i> (1985) 40 Cal. 3d 24, 32, the court held that a discount for female patrons on “Ladies Night” at a bar violated the UCRA notwithstanding the bar’s claim that the discount was for social and business purposes. The court stated that a discount for female patrons intended to “encourage[e] men and women to socialize in a bar—is a far cry from the social policies which have justified other exceptions to the Unruh Act.” (<i>Id.</i> at 33.) The court also noted that “differential pricing based on sex may be generally detrimental to both men and women, because it reinforces harmful stereotypes.” (<i>Id.</i> at 34.) “[T]he nature of the business enterprise or the facilities provided has been asserted as a basis for upholding a discriminatory practice <i>only</i> when there is a strong public policy in favor of such treatment.” (<i>Id.</i> at 31 [emphasis in original].) Here, whether the social policy promoted by the subject events is a strong enough public policy to justify the discriminatory conduct is a factual issue that should not be decided at the demurrer stage. Thus, the court overrules the demurrer on this second ground. Third, Defendants demur to both causes of action on the grounds that the FAC fails to allege facts sufficient for a class action. The court continued the hearing on this Demurrer to allow for supplemental briefing on this issue. “[C]ourts have routinely decided the issue of class certification on demurrer, sustaining demurrers without leave to amend where it is clear that there is no reasonable possibility that the plaintiffs could establish a community of interest among the potential class members and that individual issues predominate over common questions of law and fact.” (<i>Tucker v. Pac. Bell Mobile Servs.</i> (2012) 208 Cal. App. 4th 201, 212 [emphasis added].) “If there is a reasonable possibility the plaintiffs can plead a prima facie community of interest among class members, ‘the preferred course is to defer decision on the propriety of the class action until an evidentiary hearing has been held on the appropriateness of class litigation.’” (<i>Id.</i> at 215.) When a “complaint alleges there is an ascertainable class and plaintiffs may be able to demonstrate a community of interest as to the elements of their claim[], aside from the amount of damages suffered by each class member,” the court should overrule the demurrer as to the class claims. (<i>Vasquez v. Superior Ct.</i> (1971) 4 Cal. 3d 800, 815.) “It may be, of course, that the trial court will determine in subsequent
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	proceedings that some of the matters bearing on the right to recovery require separate proof by each class member,” but “the maintenance of the suit as a class action is not precluded so long as the issues which may be jointly tried, when compared to those requiring separate adjudication, justify the maintenance of the suit as a class action.” (<i>Id.</i>) “If the questions which must be litigated separately are not numerous or substantial, it would be advantageous to the parties and the judicial system to allow the named plaintiffs to sue on behalf of the class.” (<i>Id.</i>) The FAC seeks to define the class as “[a]ll non-female persons who encountered Defendants’ discriminatory terms and conditions for Defendants’ Ladies Night events during the class period, and were thereby excluded from receiving the same full and equal accommodations, advantages, facilities, privileges, or services that Defendants provided to female persons, solely on the basis of sex.” (FAC ¶ 53.) The common question of law/fact at issue is “[w]hether the non-female persons who encountered Defendants’ terms and conditions for Defendants’ Ladies Night events during the class period, were thereby excluded from receiving the same full and equal accommodations, advantages, facilities, privileges, or services that Defendants provided to female persons, solely on the basis of sex.” (<i>Id.</i> ¶ 54(b)(1).) Defendants contend that this class definition is too broad as it does not satisfy the standing requirements for a UCRA claim. Defendants argue that the proposed class definition includes anyone who is merely aware of Defendants’ allegedly discriminatory events. The court agrees that the current class definition is overbroad and does not define a class that has standing to bring a UCRA claim. “[A]n individual plaintiff has standing under the Act if he or she has been the victim of the defendant's discriminatory act.” (<i>White v. Square, Inc.</i> (2019) 7 Cal. 5th 1019, 1025.) For brick-and-mortar establishments, “a plaintiff who has transacted with a defendant and who has been subject to discrimination has standing under the Act.” (<i>Id.</i> at 1026; <i>Orloff v. Hollywood Turf Club</i> (1952) 110 Cal. App. 2d 340, 343 [There is “no duty or obligation on the part of the defendant to the plaintiff arising out of a contractual obligation and none arising out of law, unless and until the plaintiff tendered to the defendant a ticket of admission issued by it or its price charged to all persons who alike sought admission to its track.”]; <i>Angelucci</i>, 41 Cal. 4th at 175 [In discriminatory pricing cases, “injury occurs when the discriminatory policy is applied to the plaintiff—that is, at the
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	time the plaintiff patronizes the business establishment, tendering the nondiscounted price of admission.”].) Here, the class definition does not limit the class to non-female persons that purchased tickets to the Ladies Night events and were discriminated against by being excluded from the event. Instead, the class is broadly defined to include “[a]ll non-female persons who encountered Defendants’ discriminatory terms and conditions for Defendants’ Ladies Night events.” In supplemental briefing, Plaintiff attempts to narrow the class to all non-female persons on Defendants’ newsletter distribution list, but that is not the class definition pled in the FAC. Further, Plaintiff fails to demonstrate that a putative class member being sent Defendants’ newsletters is sufficient to show that the class member transacted with Defendants in a way that subjected the class member to discriminatory policies or practices. Plaintiff cites to no authority that allows a plaintiff or class member to assert a UCRA claim simply because they have previously done business with a defendant unconnected to the purported discriminatory policy. Absent a transaction involving discriminatory policies or practices, a “mere awareness of a business's discriminatory policy or practices is not enough for standing.” (<i>White</i>, 7 Cal. 5th at 1029.) Standing in such a case requires that a plaintiff “visited a business establishment with the intent to use its services.” (<i>Id.</i> at 1030.) At the pleading stage, a plaintiff must allege that he or she “intended to make use of the business's services” but “encountered discriminatory terms.” (<i>Id.</i> at 1032.) At summary judgment or at trial, “to prevail on [an] Unruh Civil Rights Act claim,” a plaintiff has to show a “bona fide intent” to use the defendant’s services. (<i>Thurston v. Omni Hotels Mgmt. Corp.</i> (2021) 69 Cal. App. 5th 299, 307; <i>id.</i> at 309 [“[W]e do not agree that an Unruh Civil Rights Act claimant's intent or motivation for visiting the covered public accommodation is irrelevant to a determination of the merits of his or her claim.”].) Here, Plaintiff’s class definition is not limited to those who had a bona fide intent to attend a Ladies Night event. With respect to a class defined by Defendants’ newsletter distribution list, the court questions Plaintiff’s assumption that all non-female persons in Defendants’ newsletter distribution list have a bona fide intent to attend a Ladies’ Night event simply because they may be interested in attending co-ed events. Nevertheless, the court finds that whether the defined class has a bona fide intent to attend a Ladies’ Night event and whether
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	proving a bona fide intent may be managed in a class action should be decided at the class certification stage. In sum, to have standing for UCRA claim, either a class member must have purchased a ticket to a Ladies Night event and was denied admission for not being female, or had a bona fide intent to purchase a ticket to a Ladies Night event but did not do so because of Defendants’ purportedly discriminatory policy. As the class is currently defined, Plaintiff has failed to allege a class that is amenable to class treatment for a UCRA claim. Plaintiff must either amend the class definition to all non-female persons that purchased tickets to the Ladies Night event and were subject to discrimination (such that bona fide intent is not a factor), or narrow the class definition to only those with a bona fide intent to attend a Ladies Night event and encountered Defendants’ purportedly discriminatory policy. The court sustains with leave to amend the demurrer on this third ground. Defendants also argue that the subject class is not amenable to class treatment because the claim involves the individualized question of whether class members had a bona fide intent to use Defendants’ services. “[A] class as ascertainable when it is defined ‘in terms of objective characteristics and common transactional facts’ that make ‘the ultimate identification of class members possible when that identification becomes necessary.’” (<i>Noel v. Thrifty Payless, Inc.</i> (2019) 7 Cal. 5th 955, 974.) Courts “require that classes be defined clearly and based on objective criteria.” (<i>Id.</i> at 977.) “[T]he requirement of a clearly defined class based on objective criteria . . . serves to weed out ‘classes that are defined too vaguely[,]’ . . . [and] ‘classes that are defined by subjective criteria, such as by a person's state of mind’ . . . all of which raise due process or other fairness concerns.” (<i>Id.</i>) However, as stated above, “[i]f the questions which must be litigated separately are not numerous or substantial, it would be advantageous to the parties and the judicial system to allow the named plaintiffs to sue on behalf of the class.” (<i>Vasquez</i>, 4 Cal. 3d at 815; <i>Ayala v. Antelope Valley Newspapers, Inc.</i> (2014) 59 Cal. 4th 522, 539 [“Individual issues do not render class certification inappropriate so long as such issues may effectively be managed.”].) Defendants cite two cases that discuss dismissing class claims at the demurrer stage. In <i>Weaver v. Pasadena Tournament of Roses Ass’n</i> (1948) 32 Cal. 2d 833, 841, the court stated that a common question of law among class members is insufficient to support
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		class treatment if it still leaves to be litigated several factual questions for each individual before liability can be established. In that case, the court determined that after the common issues were decided, the court still needed to determine “the right of any other person to recover on his statutory claim in the light of whether <i>he</i>, in reliance upon the advertised sale, stood in line, received an identification stub, was denied tickets before the promised 7,500 had been sold, presented himself at the Rose Bowl as a ‘sober, moral person,’ demanded admission, tendered the price, and was refused, entitling him “to recover ... his actual damages” as well as the fixed statutory penalty of \$100.” (<i>Id.</i>) Demurrer to class claims should be sustained when “[t]he only issue common to the named plaintiffs and unnamed class members is essentially one of law: whether the respondents are liable under the Act for wrongful exclusion of any person possessing the alleged personal characteristics.” (<i>Bartlett v. Hawaiian Vill., Inc.</i> (1978) 87 Cal. App. 3d 435, 440.) “That circumstance alone does not fulfill the required element of ‘community of interest’ . . . since . . . each claimant must still litigate a number of substantial fact questions peculiar to his right of recovery.” (<i>Id.</i>; <i>id.</i> n.6 [“For example, each plaintiff must independently establish that he presented himself to The Club Baths and demanded admittance, that he tendered the admission fee, that he was ejected or refused admission, that he possessed one or more of the enumerated characteristics, and that his ejection or exclusion was otherwise without good cause. Moreover, each must litigate his own actual damages beyond the statutory minimum.”].) <i>Weaver</i> and <i>Bartlett</i> involved situations where the court determined that it was clear that individualized inquiries as to liability and damages dominated over the one common legal question among class members. Here, the only individualized factual question adequately established by Defendants concerns each class member’s bona fide intent to attend the subject events. It is premature for the court to determine whether this question would involve such individualized facts as to render class treatment improper. Rather, this issue should be determined at the class certification stage. Defendants are ordered to give notice of this ruling.
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